

25STCP03486 25STCP03486

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP03486 Hearing Date: August 7, 2026 Dept: 833

Chiquita Canyon LLC Case No. 25STCP03486

Hearing:

August 7, 2026

v.

Location:

Stanley Mosk Courthouse Department:

833

County

of Los Angeles, et. al. Judge:

Joseph Lipner

Order Concerning the Motion to Compel

Further Discovery Responses

Petitioner

Chiquita Canyon LLC ("Petitioner") moves to compel further discovery responses by Respondent County of Los Angeles (the "County") to Chiquita's Requests for Admissions, Set One and Form Interrogatories, General – Set One.

The

Court DENIES the Motion to Compel Further Discovery Responses.

BACKGROUND

According to Petitioner, this writ concerns a challenge

to the County's refusal to refund a portion of a Bridge & Major Thoroughfare Fee totaling \$11.6 million ("Fee") that the County assessed in 2017 based on a planned expansion of Chiquita's landfill in Castaic, California ("Chiquita Canyon Landfill" or the "Landfill"). The Landfill closed effective January 1, 2025, and the vast majority of the planned expansion was abandoned.

Petitioner argues that they are entitled to a refund of this fee, while the County argues that Petitioner's voluntary business decision does not entitle it to a refund of the fee.

DISCUSSION

A.

Petitioner

is not entitled to discovery

"It is well settled that extra-record evidence is generally not admissible in non-CEQA traditional mandamus actions challenging quasi-legislative administrative decisions." (Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 574.) Where extra-record evidence is inadmissible in such actions, discovery of such items is prohibited. (San Joaquin County Local Agency Formation Commission v. Superior Court (2008) 162 Cal.App.4th 159, 172.)

There is one very narrow exception. (Id., at p. 168.)

Extra-record evidence is admissible in situations where (1) the evidence in question existed before the agency made its decision, and (2) it was not possible in the exercise of reasonable diligence to present this evidence to the agency before the decision was made so that it could be considered and included in the administrative record. (Ibid.)

The decision not to refund the fee pursuant was done pursuant to the Mitigation Fee Act. (Petition, ¶ 34.) An agency's determination to issue or refuse to issue a refund under the Mitigation Fee Act is generally "a quasi-legislative action subject to review under the standards applicable to ordinary mandamus." (Hamilton & High LLC v. City of Palo Alto (2023) 89 Cal.App.5th 528, 546.) Therefore, the default rule is that extra-record evidence, like the evidence Petitioner is requesting here, is not discoverable.

Petitioner argues that evidence must be admissible here because the facts are in dispute. (Motion, 2:12-14.) But the facts are not in dispute here. Petitioner alleges that “Because the purpose of the [Condition 79(B)(6) Fee] was to mitigate supposed traffic impacts as a result of the expansion of the Landfill, and the Landfill did not realize the full expansion for which the Fee was levied, the County must refund the portion of the Fee attributable to those undeveloped areas.” (Petition, ¶ 33.) Alternatively, Petitioner alleges the County cannot retain the Condition 79(B)(6) Fee under the Mitigation Fee Act. (Petition, ¶ 36.)

The parties may disagree about the legal outcome of these questions. But the facts are already known. The County’s implementation of the Fee District is a matter of public record. (Opposition, 11:9-11.) The County’s findings imposing a fee on Petitioner as part of the Conditional Use Permit are also public record. (Opposition, 11:11-12.) The County has also produced accountings related to the Fee District which show that funds are being held in a protected account pending the outcome of this litigation, and have neither been spent on improvements nor refunded. (Opposition, 12:4-6.) The County admitted that the Petitioner’s Condition payment has not been spent pending the outcome of this litigation, and that the County refused Petitioner’s refund request. (Answer at ¶¶ 3, 4, 28.)

Petitioner does not identify any legal authority that requires a written finding in a quasi-legislative determination. The Court is not aware of any. (See *City of Santa Cruz v. Local Agency Formation Com.* (1978) 76 Cal.App.3d 381, 389 [“no statute or authority known to us requires such [written] findings in quasi-legislative determinations”].)

Petitioner has not met their burden to warrant supplementing the record with new discovery.

CONCLUSION

The Court DENIES the Motion to Compel Further Discovery Responses.

IT IS SO ORDERED.

Dated: August 7,
2026

Joseph

Lipner

Superior

Court Judge